

COURT FILE NO.: 1722/97

DATE: 20050408

ONTARIO

SUPERIOR COURT OF JUSTICE

BETWEEN:

**JUDY DUNN as Litigation
Guardian for CORREENA WOLFORD,
SHERRETT WOLFORD, ROCKELLE
WOLFORD, MELLANIE WOLFORD,
CLARENCE WOLFORD and SHANNELL
WOLFORD and CLARENCE WOLFORD,
MARION WOLFORD, TREVOR WOLFORD**

Plaintiffs

- and -

**JACUZZI CANADA LTD., JACUZZI
INC., PIONEER FAMILY POOLS
(HAMILTON) INC., ESTHER
WILLIAMS POOLS OF CANADA INC.,
W.H. BOYLE, KEVEN BOYLE,
CLARENCE WALFORD and MARION
WALFORD and USI CANADA INC.**

Defendants

**James A. Scarfone, counsel on
behalf of the Plaintiffs**

**Barry Percival, counsel on
behalf of the Defendant,
Pioneer**

**Michael Baker, counsel on
behalf of the Defendants,
Boyle**

**HEARD: January 17, 18, 20,
21, 24, 25, 26, 27,
and February 2, 3,
2005
(at Hamilton)**

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CAVARZAN J.

[1] It was Correena Walford's second trip down a slide which had been installed by her parents less than 24 hours earlier on the deck of her family's four feet deep above-ground pool. Tragically, she struck the bottom of the pool with her chin causing a vertebral fracture and injury to her spinal cord resulting in quadriplegia. Instantly incapacitated and floating face down on the surface of the pool, she was saved from drowning and supported in the water until emergency assistance arrived on the scene.

[2] Correena, her parents and her siblings bring this action for damages alleging negligence against various defendants. Allegations of negligence for failure to warn of certain dangers are made against Jacuzzi Canada Ltd., the manufacturer of the slide, Esther Williams Pools of Canada, Inc., the distributor of the pool known as the Mardi Gras model, and Pioneer Family Pools (Hamilton) Inc., the retailer from which the plaintiffs purchased pool supplies.

[3] Failure to warn and negligent misstatement are the bases for the claim made against the Boyle defendants, the

private individuals who sold the used slide to Correena's mother, Marion Walford.

BACKGROUND

[4] This incident occurred on July 12, 1996, when Correena was just three months away from her 16th birthday. Her only prior experience with water slides had been at public recreational facilities such as Canada's Wonderland, Prudhomme's Garden Centre and Wet'n'Wild in the Niagara Peninsula, and at hotel pools. She testified to having descended such slides in a variety of ways including in the seated position with her feet forward, on her knees, and on her belly entering the water head first. She had never been warned at those facilities against using any of those techniques, and had never been injured in doing so. She had observed others descending those water slides "*every which way*" without incident.

[5] The Walford family had owned a series of at least three above-ground pools, including round pools of 12 and 15 feet in diameter, and the 16' x 24' x 4' deep Mardi Gras model in which Correena was injured. The Mardi Gras pool was acquired in about 1994 from previous owners and assembled in the Walfords' back yard. Correena was a swimmer. She testified that

the family had always had a pool from as far back as she can remember.

[6] Correena's maternal grandfather had resided with the Walford family and had used the Mardi Gras pool. He died on April 23, 1996. Marion Walford testified that it had been his wish that she acquire a water slide for the pool. She resolved to fulfill this wish using funds from his estate.

[7] With the purchase of the used Mardi Gras pool, the Walfords had received a booklet entitled **Mardi Gras Installation Instructions**. This booklet provided detailed step-by-step instructions for assembling this all aluminum structure. On the cover page is an illustration depicting a pool, similar in appearance to the Mardi Gras model, with a water slide mounted on the deck. Seated at the top of the slide is a young boy with his legs and feet forward prepared for a trip down the slide.

[8] Marion Walford testified that it was this illustration which initially suggested to her that a water slide could be used in conjunction with a 4' above-ground pool. She then began to make inquiries seeking further assurance that a water slide could be used with such a pool. On each occasion the question put by her was essentially *"Is it okay to use a slide with a 4'*

above-ground pool?" She acknowledged in her testimony that she never used the word "*safe*", although her concern was, indeed, about the safety of that arrangement.

[9] She first contacted the defendant, Pioneer Pools (Hamilton) Inc. (hereinafter Pioneer), and asked whether a slide was available for a 4' pool. She was told that it was. She then asked if there was a floor model available for viewing and asked about cost. She was informed that there was no floor model, and that the cost would be in excess of \$1,000.00. A slide could be ordered from the manufacturer.

[10] This initial call was to Pioneer's Barton street store where, for about two years, Marion Walford had purchased all of her pool supplies and chemicals. She testified that a representative from that store, which she referred to as "*my home base*", had attended at the Walford residence to assist with the installation of a new vinyl liner for the pool. On another occasion, a representative had attended to help her deal with an algae problem in the pool water. The Pioneer Barton Street store was familiar with her pool and she relied on the expertise of the staff in that store to keep her pool in proper working order. She trusted their advice. Even so, she was not satisfied, and she sought reassurance elsewhere.

[11] Marion Walford next telephoned and spoke to someone in the Building Department of the City of Hamilton. She was told either that the City does not regulate water slides or that there was nothing in City regulations prohibiting the use of a water slide with a 4' pool or, perhaps, she was told both.

[12] On July 9, 1996, Marion Walford saw the following advertisement in the Hamilton Spectator:

*POOL SLIDE 10', blue,
Jacuzzi make, \$350.
Call 335-8072*

She telephoned, spoke to a male, and asked whether that slide could be used with a 4' pool. According to her testimony, she was told by him that it would be okay and that he did not see a problem. She told him she would call back.

[13] She then telephoned the City Building Department again, spoke to a different official, but received the same response she had received earlier from that Department.

[14] A second call was then placed to Pioneer. She spoke to a woman, told her about the newspaper advertisement and asked again whether it was okay to use the slide with a 4' pool. The woman told her that she could not see a problem.

[15] Still not content, Marion Walford called another pool shop, Acorn Pools. She was told by Acorn that they could not foresee a problem.

[16] On July 10, 1996, she phoned and made arrangements to attend to see the slide in the newspaper advertisement. There was conflicting evidence at trial about what was said and by whom when Ms. Walford attended at the Boyle residence to view the slide. I will address that matter later in these reasons.

[17] It turned out that the slide was old, somewhat faded, had a broken handrail and was missing some parts, but was still serviceable. Ms. Walford paid \$225.00 for it, and it was loaded into her van. She testified that she was told on that occasion that the slide had been mounted on the deck of the Boyle's Kayak pool, a 4' above-ground pool very similar to the Mardi Gras pool. It had been used by William Boyle's 18-year-old son.

[18] It became known subsequently that that slide had been purchased at a garage sale, had never been installed or used by the Boyles, and had been stored in the barn on their property for about 15 years. Marion Walford testified that she had been misled by the Boyles. She stated that if she had been told that history of the slide she would not have purchased it. The

defendant Keven Boyle testified that upon viewing the slide Marion Walford stated that her husband could repair the broken handrail, the missing parts could be replaced, and that the slide was just what she had been looking for. They negotiated the price and she took the slide away in her van.

[19] Upon leaving the Boyle residence, Ms. Walford proceeded directly to the Pioneer store on Barton Street. There she obtained mountings, cup-like devices used to secure to the deck the three metal legs which support the front portion of the slide. A female clerk from the store came out to her van and the slide was pulled part way out so that she could view it. Again Ms. Walford was told, according to her testimony, that there was no problem using this slide in her 4' pool.

[20] The clerk pointed out that the tubing which supplies water to the two jets which lubricate the slide was missing. She referred Ms. Walford to Pioneer's outlet on Highway 53 in Hamilton which could supply those parts.

[21] On July 11, 1996, Ms. Walford attended at the Highway 53 store to obtain the necessary tubing. The first clerk she encountered referred her to an older gentleman near the rear of the store who was said to be knowledgeable about those things.

By this time, the slide had been placed in the Walford's back yard in anticipation of assembling it for use. The slide was described to the man as a 10' Jacuzzi slide. He supplied Ms. Walford with two kinds of tubing stating that one was sure to fit her slide. Both at the Barton Street and the Highway 53 locations she asked whether it was okay to use a slide with her 4' pool. She was told there would be no problem. The man at the Highway 53 location provided her with a sketch showing how the mountings were to be installed on the aluminum deck.

[22] Ms. Walford testified that she had felt that it was important that Pioneer see the slide. The clerk at the Barton Street store saw it. Although the older gentleman at the Highway 53 store had not seen the slide and had never been to her home to see the pool, Ms. Walford testified that he appeared knowledgeable. She trusted him and relied on his expertise.

[23] Marion Walford testified that if she had been told by Pioneer that it was not safe to use that slide, she would not have installed it even though she had already bought and paid for it.

THE EXPERT TESTIMONY

[24] Keven Barry Raftery, a professional engineer, gave expert testimony on behalf of the plaintiffs. He was qualified as an expert in forensic engineering entitled to give opinion evidence on various matters including the following:

- the consequences of lubricating the pool slide;
- the speed that would be achieved as a result of sliding down a slide from a given elevation;
- the dynamics of the movement of Correena Walford's body as she entered the pool;
- the reason Correena Walford's body moved as it did;
- whether or not, from an engineering perspective, the slide installation was safe; and
- whether or not the proper labelling was affixed to the slide.

[25] Mr. Raftery caused the slide in question to be remounted in its original position at the 128 Gage Avenue North residence of the plaintiffs. There he observed the operation of the two jets which feed water onto the sliding surface to lubricate it. He determined that the jet located near the top of

the slide fed water uniformly across the 24" wide sliding surface. The jet located near the bottom of the slide, however, fed water across the 24" wide sliding surface from its outside edge, where the jet is located, to its inside edge because the slide is banked at that point as it curves to the left. This has the effect of leaving the bottom portion of the slide less than adequately or uniformly lubricated.

[26] The slide was then relocated to Mr. Raftery's office property where it was mounted as if on a perfectly horizontal surface. Sophisticated measuring equipment was used to gauge the angles of various surfaces of the slide.

[27] Although the newspaper ad which led Marion Walford to purchase the slide in question described it as a 10' slide, there is no dispute that this refers to the overall length of the slide. The slide is actually 7'6" measured from the surface of the deck to the top of the handrail. The seating surface at the top of the slide's ladder is 6'3" above the surface of the deck and 6'6" above the surface of the water. From this height, Mr. Raftery calculated that a person can achieve a speed of approximately 20 kilometres per hour if the slide surface is well lubricated.

[28] Mr. Raftery measured the angle of the drop off from the horizontal seating surface at -51° (minus 51 degrees), and the angle of the runway exit portion at the bottom of the slide at -14° (minus 14 degrees). He compared the latter measurement to that specified in U.S. Federal Regulations known as **Consumer Product Safety Standards (C.P.S.S.)**. There it is specified that the angle of the runway at the exit of the slide shall be -3 to -11 degrees from the horizontal. He opined that the -14 degrees of the subject slide would cause one to enter the water at a steeper angle making it more likely that there would be contact with the bottom of the pool.

[29] Mr. Raftery found that the lubrication of the bottom portion of the slide was not in conformity with the **C.P.S.S.** requirements that:

Swimming pool slides shall either be equipped with a method of lubrication (for example, water) or have a similar coefficient of friction so that the slider has a smooth, continuous slide. If water is used, the nozzles, piping, or hoses that deliver water to the runway shall be recessed or designed in such a fashion as not to interfere with a slider's progress down the slide or create tripping hazards on the slide.

(underlining added)

[30] He found as well that the warning label attached to the Jacuzzi slide is inadequate and not in conformity with the **C.P.S.S.** requirements that:

- 1) *the label warns users of the very serious risks associated with using the slide;*
- 2) *the label be permanent and tamper proof* (the label on the slide was faded and barely legible);
- 3) *the label be 12.7 cm. X 25.4 cm. with 0.64 cm. tall lettering* (the label on the slide was 7 cm. x 20 cm. with 0.4 cm. tall lettering);
- 4) *the label is to include red, blue and black graphic messages* (the label on the slide had none).

[31] The label on the slide in question is located on the transom i.e., the vertical surface of the seat portion of the slide at the top of the ladder. Anyone mounting the ladder would come face to face with it before reaching the top of the ladder. It contained the following warnings:

- *Enter Water Feet First*
- *One Person Only on The Slide At A Time*
- *Never Stand Going Down Slide*

[32] In preparation for his written report of March 9, 2004, Mr. Raftery reviewed certain information, including the transcript from the examination for discovery of Correena

Walford. Attached as Appendix A to these reasons is a copy of a portion of that discovery testimony by Correena Walford (Questions 207 to 231 inclusive) in which she states that she was crouched over as she descended the slide on her knees. See in particular the answers to Questions 221 to 224.

[33] Notwithstanding that testimony, Mr. Raftery asserts at three points in his written report that she was “essentially upright” or in an “upright sliding position” as she descended the slide on her knees. At page 20, he sets forth the following theory of the injury mechanism:

5. Correena Walford has indicated that she slid down the slide in an essentially upright position, on her knees. However, it is known that her head came into a forceful contact with the bottom of the pool. In order for this to have occurred, Correena's upper body would need to have re-aligned itself from her upright sliding position. This could easily have occurred given the combination of the effective lubrication of the upper portion of the slide, and the ineffective lubrication of the lower portion of the slide:

- Along the well-lubricated upper portion of the slide, Correena would easily accelerate;*
- Upon reaching the non-lubricated surface of the lower portion of the slide, there would be an increased friction between*

Correena's knees and the surface of the chute;

- *This increased friction could have caused Correena's knees (and lower legs) to decelerate rapidly. However, her upper body would have continued to move rapidly forward toward the pool. The combination of the continued forward movement of her upper body, and the stoppage (or deceleration) of her knees would have caused the re-alignment of Correena's body that would have led to her entering the pool head-first.*

[34] Mr. Raftery's opinion depends on two assumptions, neither of which is borne out by the evidence in this case. The first is that inadequate lubrication caused deceleration of the part of the body which comes into contact with the bottom of the slide. The second is that Correena Walford descended the slide on her knees while her upper body was in an essentially upright position.

[35] No testing was done to confirm that a body using this slide would encounter this deceleration phenomenon at the bottom of the slide. The testimony of Shauwn Dunn who descended the slide twice was that he found the trip down the slide to be fast:

Q. *Well, I mean you said it was fun. It's the first time you've ever been down a water slide. Did you sort of*

say, gee, that was great, we're going to have fun on this?

A. *No, yeah, I made a comment on how fast it was.*

Q. *Yes.*

A. *Went down it pretty quick.*

Q. *Yes? So you were happy with the use of the slide?*

A. *Oh, yeah.*

(Transcript of cross-examination, p. 11)

On both occasions he went down seated and entered the water feet first without touching the bottom of the pool.

[36] In her testimony in-chief Correena Walford stated that she was the first to use the slide, her friend and neighbour Shauwn Dunn having deferred to her in order to see how it was done. She stated that she sat on her "bottom" and went down into the water.

Q. *And how did that feel?*

A. *It felt all right. Kind of fast, but it felt all right.*

(Transcript, p. 24)

Q. *Was there anything about the slide when you got on it that concerned you?*

A. *It was kind of high.*

(Transcript, p. 26)

[37] Correena testified that for her second trip down the slide she decided to go down on her knees, because she thought going down a different way was going to be fun - *"I did it everywhere else"*.

Q. Then what happened?

A. And then I went down and I clipped my chin on the bottom of the pool and felt my body float to the top of the water.

Q. Do you have any recollection as to whether your body changed position in any way as you were going down the slide?

A. As I was going down, near the bottom my body felt like it was tipping over. I felt like I was going down fast.

Q. How did you feel about that sensation?

A. I was kind of scared.

Q. And as you left the bottom of the slide, do you have any sensation of anything happening before you hit the water?

A. That I was going forward and I had no way to stop.

(Transcript, p. 27)

[38] Both Shauwn Dunn and Correena Walford had been in the pool before they emerged to mount the slide. Their bodies and

bathing suits were wet. Both water jets were operating on the slide. The short 10' trip down the length of the chute would involve crossing through the stream of water flowing across the chute from the lower water jet. There is no suggestion in the evidence of the two who used the slide that they encountered any deceleration when their legs passed over the lower portion of the slide on any of the three descents made in the seated position with their legs and feet forward.

[39] Not having done any testing with live subjects in a safe environment, it is nothing more than speculation on the part of Mr. Raftery that a human body would react the way he suggests it might on this slide and in the circumstances experienced on July 12, 1996.

[40] What can be properly inferred from the evidence is that the slide could be used safely if the printed instructions on the slide and, indeed, Marion Walford's admonition to her children had been followed. Both Shauwn Dunn and Correena Walford testified that upon descending the slide in a seated position with their feet forward, they had entered the water without contacting the pool bottom.

[41] In my view, Mr. Raftery acted more as an advocate for the plaintiffs' cause than as an independent scientific expert. The evidence at trial confirms that his terms of reference were formulated in consultation with plaintiffs' counsel. Although the general assignment was to *"review the available materials, attend the location of the incident, inspect the subject swimming pool and slide, and provide an independent engineering assessment"*, the specifics do not ask him to determine whether or not the conduct of Correena Walford or that of any member of her family was a contributing factor to the tragic event.

[42] The Summary at page 22 of the Raftery report states that:

14. *The design of the slide, the installation of the slide, the lubrication of the slide, the absence of appropriate labeling, and the depth of the water, were all factors that caused or contributed to Correena Walford's injury.*

That summary corresponds to the specifics of the assignment which focus on the slide, on the pool, and on Pioneer as the supplier of the tubing for the water jets.

[43] Asked by Mr. Percival in cross-examination if he would add to the above summary as a factor Correena's own responsibility for this accident, he answered *"I suppose if she*

went down on her bum, feet first, it wouldn't have happened". Challenged by Mr. Percival on his insistence in the report that Correena was essentially upright as she slid down the slide on her knees, whereas her discovery testimony (see Appendix A) was that her body was not at right angles to her legs but crouched over closer to her knees and with her hands on her knees, Mr. Raftery dismissed the difference as mere semantics.

[44] In my view no one could have come to the conclusion, based on a fair reading of that discovery testimony, that Correena descended the slide in an upright position. In that regard, Mr. Raftery's testimony was disingenuous. I am, accordingly, unable to credit his theory explaining Correena's head-first plunge into the pool.

[45] I regret to say, as well, that I reject as not credible Correena's testimony during cross-examination at trial in which she did a complete about-face on a series of answers given by her at her examination for discovery. The questions asked and the answers given at discovery are set forth in Appendix A.

[46] The questions at discovery were clear and unequivocal. At trial she claimed to have misunderstood the questions, that

she had a learning disability, or that she was confused by the questions or did not remember. From my observations of her she is intelligent and articulate. She is a high school graduate who is holding her own in post-secondary studies at Mohawk College. Neither her parents nor those of her siblings who testified at trial suggested that Correena has a learning disability.

[47] As stated by Mr. Percival, one can understand how a person can misunderstand or be confused by one question, but not by a series of 17 crucial questions. Correena's examination for discovery was conducted some 2½ years before the commencement of the trial. She had reviewed her transcript before trial, and her mother stated that she had given that transcript to Correena. Despite the obligation under the **Rules of Civil Procedure** to advise the opposing party in writing before trial of any erroneous answers, no corrections were ever communicated to the defendants.

[48] Correena testified that she had not read the Raftery report. Yet, for the first time on the second day of her testimony, namely, on January 24, 2005, she stated that she had felt "stickiness" on the lower part of the slide as she was going down the slide. She made no mention of that during her first day of testimony on January 20, 2005.

[49] I agree with the submission that this was an attempt to explain away her testimony at discovery in May, 2002. The only reasonable inference is that she was aware of Raftery's views and attempted, in her trial testimony, to adopt his opinion that the unequal distribution of water on the lower part of the slide caused her torso to pitch forward.

THE ESTHER WILLIAMS/MARDI GRAS POOL

[50] The defendant Esther Williams Pools of Canada Inc. settled with the plaintiffs prior to trial. Its counsel, Mr. Scisizzi, appeared at the outset but was permitted to withdraw and he did not participate in the trial.

[51] In 1994 or 1995 when the Walfords purchased the Mardi Gras pool from its previous owners, they received a manual entitled ***Mardi Gras Installation Instructions for Esther Williams All Aluminum Swimming Pools***. It was the cover of this manual which contained a drawing of a curved pool slide installed at one end of a rectangular above-ground pool.

[52] The Raftery report at page 19 is critical of Esther Williams for condoning the use of slides with such pools. It

notes that page 12 of the installation instructions contains the following warning:

Note: Diving Equipment of any type is not permitted to be installed for use with this pool.

Nevertheless, the following is stated at page 19 (Raftery):

Given the hazards, the warning should also include reference to pool slides. Despite the fact that the use of pool slides in this type of pool can result in serious injury, the instructions make no reference to such hazards. In fact, the illustration on the front cover...actually depicts a curved pool slide installed alongside an Esther Williams above ground pool, constituting an allurement.

[53] The report was similarly critical of a publication reviewed by Mr. Raftery entitled ***"The Care and Maintenance of Your Esther Williams Above Ground Or In Ground Swimming Pools"***, because it alludes to slide removal when winterizing a pool. Raftery interpreted this as Esther Williams condoning the use of slides in conjunction with their above-ground pools.

[54] Portions of the examination for discovery of Frederick Schall, the Senior Vice-President of the defendant Esther Williams, were read into the record at trial. He was examined on August 16, 2001. He testified that his association with that

company extends back to the early 1970s when he was involved in designing the Mardi Gras model

[55] Mr. Schall was able to confirm, having personally inspected the Walfords' pool, that it had been manufactured in New Jersey some time between 1973 and 1974. He confirmed that Esther Williams never conducted any tests to determine whether it was safe to use water slides or diving boards in conjunction with that pool. He confirmed as well that his company has never been made aware of any problems with respect to the use of slides with these pools.

[56] He was not aware of any government regulations governing the use of pool slides in Canada. He cited the **Code of Federal Regulations** as containing regulations governing the use of pool slides in the U.S.A. These came into effect in the late 1970s, after the pool in question had been manufactured.

[57] He stated that the pool was designed to meet the standards in effect at the time established by the National Swimming Pool Institute, currently known as the National Spa and Pool Institute. There was nothing in the standards addressing slides.

[58] He noted that the care and maintenance manual applies to both above-ground and in-ground pools. *"In-ground pools can have diving boards and slides, and you can't put a diving board on the above-ground pool, although you could put a slide if you chose to"*. If the water depth were four feet, he suggested a slide would be appropriate for *"a deep-end pool, a hopper end"*. He explained that Mardi Gras pools offered the option of a deep end with a *"hopper"* with a water depth of 7½ feet.

[59] Finally, he was asked the following questions:

346. Q. In other words, someone reading the literature with regard to a Mardi Gras pool has no indication from the literature that a slide is not permissible?

A. It is permissible, because slides come in all different heights and have all different mounting requirements.

351. Q. So would you agree with me that a person, then, is left to his own devices or to his own common sense to determine whether a slide can go in or a slide cannot go in to a four-foot Mardi Gras pool?

A. No, they are left to read the instructions that come with the slide product.

THE ISSUES

[60] On behalf of the plaintiffs the issues were formulated as follows: Were the damages suffered by Correena Walford caused or contributed to by any of the defendants and, if so, is there any contributory negligence by Correena as a 15½ year old child?

[61] Because the plaintiffs' claims are against manufacturers, retailers, and private vendors, it will be best to proceed by the application of basic principles to the circumstances exhibited by the evidence in this case. Approached in this manner, the issues are:

- Did any of the defendants owe a duty of care to the injured party?
- If a duty of care is found to exist, then it is necessary to consider what standard of care was necessary and whether that standard was met.
- Was there a causal connection between the defendant's allegedly negligent conduct and the damages suffered by the injured party?

See **Stewart v. Pettie** [1995] 1 S.C.R. 131 at paragraphs 22 and 23.

[62] Current statements of the law on duty of care, standard of care, and causation are found in **Stewart v. Pettie**, *supra*, at the following paragraphs:

24. The "modern" approach to determining the existence of a duty of care is that established by the House of Lords in *Anns v. Merton London Borough Council*, [1978] A.C. 728, and adopted by this Court in *City of Kamloops v. Nielsen*, [1984] 2 S.C.R. 2, at pp. 10-11. This test, as established by Wilson J. in *Kamloops*, paraphrasing *Anns* is:

(1) is there a sufficiently close relationship between the parties...so that, in the reasonable contemplation of the authority, carelessness on its part might cause damage to that person? If so,

(2) are there any considerations which ought to negative or limit (a) the scope of the duty and (b) the class of persons to whom it is owed or (c) the damages to which a breach of it may give rise?

[63] On the matter of standard of care, the following statements from ***Stewart v. Pettie*** are instructive:

37. Historically, the courts have been reluctant to impose liability for a failure by an individual to take some positive action. This reluctance has been tempered in recent years where the relationship between the parties is such that the imposition of such an obligation has been warranted.

41. ...there are two questions to be answered. The first is whether the defendant was required, in the circumstances, to take any positive steps at all. If this is answered in the affirmative, the next question is whether the steps taken by the defendants were sufficient to discharge the burden placed on them.

[64] At paragraph 48, Major J. speaking for the Court stated that he had *"difficulty accepting the proposition that the mere existence of this 'special relationship', without more, permits the imposition of a positive obligation to act."*

48. ...Every person who enters a bar or a restaurant is in an invitor-invitee relationship with the establishment, and is therefore in a "special relationship" with the establishment. However, it does not make sense to suggest that, simply as a result of this relationship, a commercial host cannot consider other relevant factors in determining whether in the circumstances positive steps are necessary.

[65] On the matter of causation, the Court emphasized the need for proof of causation.

60. The plaintiff in a tort action has the burden of proving each of the elements of the claim on the balance of probabilities. This includes proving that the defendant's impugned conduct actually caused the loss complained of.

THE CLAIMS

[66] I deal first with the claims against Pioneer and the Boyles who were the only defendants participating at trial.

Pioneer Family Pools (Hamilton) Inc.

[67] The original allegations against Pioneer in the statement of claim were that it had been negligent because it:

(a) sold mountings and provided negligent advice about the installation of the slide in order to make the sale of the mountings; and

(b) failed to provide instructions on how to install the Jacuzzi slide in such a way as to avoid serious injury.

[68] No advice was given relating to installation except for a diagram given to Marion Walford as to how the slide should be positioned on the deck. She was told that the end of the slide should project beyond the edge of the deck and be over the water. There is no causal connection between either of those allegations and the damages in this case.

[69] Following examinations for discovery the plaintiffs amended the statement of claim by adding the following allegations against Pioneer:

(c) It knew or ought to have known that a ten foot high slide absolutely should never be used with respect to a four foot pool;

The evidence establishes that the slide was 7'5" high (deck to handrail) and 6'3" (deck to seating surface at the top of the ladder).

(d) It failed to advise the Plaintiff when specifically requested that such a slide could not be used with a four foot pool;

No such specific request was ever made. Marion Walford acknowledged that she asked whether it was okay to use a slide with a four foot pool. The answer which she received was in the affirmative, an answer consistent with prevailing standards.

(e) It failed to properly train, instruct and/or supervise its employees as the Plaintiffs attended at two separate locations and specifically asked whether or not a four foot pool and a ten foot slide could be used together and the said defendant, through its representatives, confirmed that the slide could be used, which advice was negligent in the circumstances;

Again, the evidence at trial does not support the assertion that employees of Pioneer were *"specifically asked whether or not a four foot pool and a ten foot slide could be used together"*. Sumera Fraser was the manager of Pioneer's Barton Street store in July, 1996. She was not called as a witness at trial. Mr. Scarfone read into the record at trial certain extracts from her examination for discovery. Although she had no recollection of having met Marion Walford, she did recall two women arriving in a van and asking for tubing for a slide which they had in the van. She went to the van to measure what length of tubing would

be required. She had no recollection of being asked for mountings for the slide on that occasion.

She stated that Pioneer employees were not instructed to inquire as to the type of pool, should a customer come to the store for parts for a pool slide. She stated further that she had no information from Pioneer as to whether or not it was appropriate to use a slide with a four foot pool, and that she had no training at all with respect to that kind of issue.

Marion Walford did not purchase the slide from Pioneer and never asked Pioneer for any brochures or safety information concerning the use of pool slides. In my view there is no duty on a pool supply store to make inquiries about the characteristics of the pool when a customer attends to purchase replacement parts for a slide. In any event, assuming that Marion Walford put to Sumera Fraser the question *"Is it okay to use a slide with a four foot pool"*, and that she received an affirmative answer, that answer was consistent with prevailing standards.

(f) The Defendant, via the Barton Street Pioneer, sold mountings when it knew or ought to have known that the mountings would permit the Plaintiff to install a slide that was unsafe in the circumstances;

(g) The Defendant, by the Rymal [Highway 53] store, ought not to have sold water fittings when it knew or ought to have known that the water fittings would facilitate the

use [of] the slide which was dangerous in the circumstances;

There is no evidence before me that Pioneer either knew or ought to have known that selling mountings to Marion Walford would permit her to install a slide that was unsafe in the circumstances.

Similarly, with respect to the allegation in paragraph (g) above, there is no evidence that Pioneer knew or ought to have known that the water fittings supplied by it would facilitate the use of a dangerous slide.

(h) The Defendant, whose two locations had previously attended to the plaintiff's pool needs and specifically provided mountings and fittings for the slide that is the subject matter of these proceedings;

Paragraph (h) makes no sense grammatically. Insofar as it suggests that the Highway 53 store had previously been the source of pool supplies for the plaintiffs, it is in error according to the evidence at trial.

(i) The Plaintiffs state that they purchased various goods from the defendant Pioneer Pools on a regular basis and came to rely upon the advice given to them by it;

Marion Walford emphasized repeatedly that the Pioneer Barton street store was her home base, that she relied on it for expert advice concerning her pool, and that she trusted the store

personnel to give her proper advice. To the extent that this may establish a special relationship between Ms. Walford and Pioneer giving rise to a duty of care, it does not answer the questions of the appropriate standard of care and whether the steps taken by Pioneer were sufficient to discharge the burden placed on it.

(j) The Plaintiffs state that the employees, servants or agents of the defendant Pioneer Pools personally inspected the slide and knew or ought to have known that it was ten feet in height and knew or ought to have known that the pool in question was only four feet deep, having serviced it specifically at the premises at 128 Gage Street North in the City of Hamilton;

It is not disputed that the slide in question is not ten feet in height. There is no evidence that any Pioneer representative believed that the slide in question was ten feet in height. The fact that a representative from the Barton Street store had attended at the Walford residence and had seen the four foot pool is irrelevant, given that Marion Walford invariably asked whether a slide could be used with a four foot pool.

(k) The Plaintiffs state that the employees, servants or agents of the defendant Pioneer Pools in contemplation and expectation of making a sale of certain products including mountings and water fittings, put themselves in a position of trust and reliance with respect to the plaintiffs and provided negligent advice to which a ten foot slide

in question could be used with a four foot deep swimming pool.

This paragraph simply restates allegations made in previous paragraphs. Given that Marion Walford had discussed with the Boyles the need for obtaining replacement parts for the slide, and had travelled directly from the Boyle residence to Pioneer with the newly-acquired slide, it would be a reasonable inference that the motivation of the Pioneer staff was to supply the requested missing parts, and not to mislead Ms. Walford for the purpose of making a sale.

[70] Marion Walford was very safety conscious. She had established firm rules about use of the family pool. No diving, no running, and entry into and exit from the pool had to be by way of the ladder. Either she or her husband was always present when the pool was in use. If the children disobeyed the rules they were disciplined. Ms. Walford had posted a "*No Diving*" sign in a house window facing the pool.

[71] Her evidence was that she had gathered her children together even before the slide was installed and instructed them on rules for safe use of the slide. Correena confirmed that she had been told that users of the slide were to descend in the seated position so that they would enter the water feet first.

[72] In her research about the use of a water slide with a four foot deep pool Marion Walford was told by the City of Hamilton officials that they knew of no prohibition in that regard. The two pool supply businesses consulted, namely Pioneer Pools and Acorn Pools, both told her that it was okay to use a slide with a four foot pool.

[73] She did not seek any advice about warnings or safety precautions from those pool supply businesses, and she never received any warnings from any source relating to the use of a water slide in a four foot pool.

[74] The answer given to her question by both pool supply businesses was accurate and in accordance with the only applicable legal standard - the **U.S. Consumer Product Safety Standards (C.P.S.S.)**. **C.P.S.S.** criteria for swimming pool slides came into effect on July 19, 1976. I have already referred to the **C.P.S.S.** lubrication requirements and the runway exit vertical angle requirements.

[75] The **C.P.S.S.** also regulates the height of slides in relation to the depth of water. For water depths between three and four feet, slides should be no higher than 6'6" (from deck to slide seating surface) and restricted to use only by children

under 13 years of age. Where the water depth is four feet or more *"unrestricted slides"* may be used. **C.P.S.S.** Table 4 indicates that for slides 7'6" or less in height, the minimum water depth is to be four feet. The Jacuzzi slide in question was 6'3" in height measured from the deck to the seating surface at the top of the slide, and 6'6" measured from the surface of the water to the seating surface at the top of the slide.

[76] At pages 15,342 and 15,343 are set forth *"Intended-Use Instructions"*. They include the following rules:

3. Do not use the slide as a diving platform. The slide is made for sliding - not for diving.

11. Teenagers and adults should not use slides placed in less than 4 feet of water. Serious injury can be incurred by striking the bottom.

[77] According to Raftery the **C.P.S.S.** 1976 standards for swimming pool slides are still in effect today and were in effect in 1996 when Marion Walford was making her inquiries.

[78] Mr. Raftery also consulted the **American National Standard For Aboveground/Onground Residential Swimming Pools** sponsored by the National Spa and Pool Institute (NSPI) and approved on November 12, 1991 by the American National Standards Institute, Inc. (ANSI)

[79] The preamble to these standards states that the use of these standards is completely voluntary:

...their existence does not in any respect preclude anyone, whether he has approved this standard or not, from manufacturing, marketing, purchasing, or using products, processes, or procedures not conforming to the standards.

[80] There is no evidence before me that Pioneer participated in the creation of these standards or that it volunteered to be bound by them. In any event Articles 1.2 and 1.3 invoked by the Raftery report in support of his opinion that no slides of any kind should be used in an above-ground pool with four feet of water, are not applicable in the circumstances here.

1.2. Aboveground/onground residential swimming pools are for swimming and wading only. No diving boards, slides or other equipment are to be added to an aboveground/inground pool that in any way indicate that an aboveground/inground pool may be used or intended for diving purposes.

(underlining added)

The Walfords prohibited diving in the pool. Before the slide was installed it was made clear to the family members that the slide was for sliding only. The warning sign on the slide stated, among other safety tips, "Enter water feet first".

1.3 This standard does not apply to public/commercial pools, permanently installed residential pools, competitive pools, hot tubs, and other pools or spas such as those operated for medical treatment, physical therapy, or other special purposes.

(underlining added)

There is evidence in this case from which it may be reasonably concluded that the pool in question is a permanently installed residential pool and I so find. Installing it involved some excavation to prepare the ground surface to receive it. Some concrete was used in its construction. It has remained in place year after year and not dismantled.

[81] A Jacuzzi brochure of March 1, 1973 entitled **Deluxe Pool Slides** refers to these slides, including the Model S75L (the "L" refers to the left-hand curve of the slide) purchased by Marion Walford, as safe and serviceable. The minimum recommended water depth for the S75L is 4'0". At page 8 of the brochure the S75L model is described as "*suitable for adults and children, and have 24-inch chutes*".

[82] The Jacuzzi owner's manual dated February 1, 1976 refers to the same 4'0" minimum water depth for the slide in question. It also recites the same safety tips found on the

slide's label: 1. Enter water feet first; 2. One person only on the slide at a time; 3. Never stand going down slide.

[83] With respect to the installation of the water jets, the detailed instructions include the following steps: *"Turn on the water, and check that the flow from the jet(s) covers the surface of the chute. Adjust the flow or set the jet(s) accordingly."* This would tend to call into question the suggestion in the Raftery report that the inadequate lubrication of the lower part of the slide is a design defect. There is no mention in that report that any attempt was made to adjust the jets to obtain proper coverage. Similar advice is in the maintenance part of the owner's manual: *"Check that the flow from the nozzle(s) covers the chute, and adjust or clean the nozzle(s) if necessary."*

[84] The answer given to Marion Walford by Pioneer's employees on each occasion was truthful and not misleading. It was accurate and consistent with the only applicable legal standard in existence. This would be so, in my view, even if the question repeatedly asked *"Is it okay to have a slide in a 4' deep pool?"* were taken to mean *"Is it safe to use a water slide which is 6'3" above the deck and 10' in length, with a 4' deep above-ground pool?"*.

[85] I agree with Pioneer's submission that if that question was put in 1973 or 1974 when both the slide and the pool in question were manufactured, the answer would be yes, if properly used. The same answer would have been given in 1976 when the **C.P.S.S.** regulations came into effect, in 1996 when the events in this case occurred, and even today.

[86] Marion Walford insisted that Pioneer should have told her more. The printed information from the water slide manufacturer in 1996 would not have said anything different from the **C.P.S.S.** The Walford pool had a water depth slightly in excess of 48". It has been established on a balance of probabilities that because the pool bottom had been excavated to the depth of a few inches, and because Marion Walford topped up the pool daily, the water depth in the pool was in excess of four feet. As such, this pool could accommodate "*unrestricted slides*" according to the table provided in the **C.P.S.S.** regulations.

[87] The plaintiffs did not purchase the slide from Pioneer. Pioneer merely supplied missing parts for the slide. To the extent that there may be defects in the design of the slide, they would be the responsibility of the manufacturer of the

slide, not Pioneer. In my view, the plaintiffs have failed to establish that Pioneer was in breach of any duty owed to them.

[88] The claims against Pioneer and any cross-claim against Pioneer by other defendants are, accordingly, dismissed.

The Claims Against the Boyles

[89] William Boyle and Keven Boyle are father and son respectively who reside together in the private residence which Marion Walford visited to view the slide advertised for sale in the Hamilton Spectator.

[90] The Boyle property contained a four foot above-ground Kayak brand swimming pool similar in layout to the Walfords' pool. The evidence at trial established that the Boyles had had a slide installed years earlier which had been used for about two years and then removed at William Boyle's insistence. Keven Boyle, who had purchased it, then arranged to sell it.

[91] After an interval of several years, Keven Boyle saw the Jacuzzi slide in question at a garage sale and purchased it. William Boyle would not permit him to install it. The slide was then stored in the barn on the Boyles' rural property for some 10 to 15 years.

[92] When it was decided to clean out the barn, Keven Boyle placed successive ads in the local newspaper offering the slide for sale initially for \$425, then \$350, and ultimately for \$225. Marion Walford responded to the July 9, 1996 ad offering the slide at the price of \$350.

[93] At their examinations for discovery, the Boyles acknowledged that the slide had never been installed or used by them. There was conflicting evidence given by Marion Walford and her neighbour and friend Judy Dunn on one hand, and William and Keven Boyle on the other. Walford and Dunn testified that when they attended to view the slide on July 10, 1996, they had dealt primarily with William Boyle. Marion Walford testified that he had showed her where the slide in question had been installed on his pool deck, and that he had told her that it had been used by his then 18 year old son.

[94] Keven and William Boyle testified that the slide was the property of Keven, that he alone had dealt with Marion Walford and that nothing had been said to her about that slide having been installed on their pool deck. The Boyles testified that the slide was presented for sale "as is", that Marion Walford noticed the broken handrail and the rusted and missing parts for mounting the front part of the slide to the deck.

According to Keven Boyle, Marion Walford stated that the slide was just what she was looking for, that she was purchasing it to fulfill her late father's wish, that her husband could repair the broken handrail, and that she could purchase the missing parts. A sale price of \$225 was negotiated and paid. Keven Boyle assisted her in placing the slide into her van.

[95] I need not make findings of credibility in order to assess whether or not there is liability on the part of the Boyles. I will proceed to assess that liability on the assumption that the version of events advanced by Marion Walford is the true version.

[96] The allegations in the statement of claim as initially delivered were that the Boyles:

(a) sold a "Jacuzzi slide" and failed to pass on any of the manufacturers instructions to the Plaintiff, Marion Walford;

The slide had been purchased at a garage sale, and Keven Boyle never possessed any manufacturer's instructions. There were none to pass on.

(b) knew or ought to have known that the "Jacuzzi slide" should not be used with a four foot deep pool.

There was no evidence that either of the Boyles had any such knowledge. Their prior experience with a slide on their above ground pool for a period of about two years was satisfactory in the sense that there had been no injuries. William Boyle testified that he had it removed because of excessive water consumption to keep the pool filled and because it was too onerous to constantly supervise those using the pool and the slide. He candidly admitted that he has always had a concern for safety in the pool because of the presence of a slide.

[97] The revised statement of claim added the following allegations:

(c) the Defendants, both Keven Boyle and William H. Boyle misled the Plaintiff Mary [sic] Walford into believing that the slide had been used for many years by children and/or other family members;

(d) the Defendants, both Keven Boyle and William H. Boyle, misled the Plaintiff Mary [sic] Walford into believing that this slide had been installed on this pool, which was very similar to the Plaintiffs';

(e) the Defendant, William H. Boyle, negligently misled the Plaintiff Mary [sic] Walford by actively demonstrating where the slide should be installed and where it was installed on this pool, which was very similar to the Plaintiffs' and was approximately four feet deep;

(f) the Defendants, both Keven Boyle and William H. Boyle, knew that the slide was dangerous and had concluded that it was dangerous and unsafe and failed to communicate their knowledge to the Plaintiff Mary [sic] Walford in order to induce her to purchase the slide;

(g) the Defendants, both Keven Boyle and William H. Boyle, had never installed the slide and never used it yet negligently and recklessly misled the Plaintiff Mary [sic] Walford into believing that it had been installed and actively used safely for may [sic] years and they ought to have conveyed that to the Plaintiff Mary [sic] Walford knowing that she intended to rely upon their statements.

[98] The claim against the Boyles is for negligent misrepresentation. In ***Kingu v. Walmar Ventures Ltd.***, [1986] B.C.J. No. 597 (B.C.C.A.), McLachlin J.A. (as she then was), speaking for the Court, considered “whether the establishment of a cause of action for negligent misrepresentation in *Hedley Byrne & Co. v. Heller & Partners*, [1964] A.C. 465, has added yet a further remedy to the traditional remedies available for misrepresentation inducing a party to enter a contract” (at paragraph 19). She then stated that:

21. I conclude that a plaintiff suing on pre-contractual representations is not as a matter of principle confined to his remedies in contract, but may sue in tort for negligent misrepresentation. However, the question of whether a duty of care in tort

arises must be carefully scrutinized in the light of all the surrounding circumstances, including the rights and obligations which the parties have themselves established by their contract.

22. The question then is whether the requirements of tort liability on the basis of *Hedley Byrne* are satisfied in the case at bar. Those requirements may be summarized as follows:

- (1) A false statement negligently made;
- (2) A duty of care on the person making the statement to the recipient. A duty of care does not arise unless
 - (a) the person making the statement is possessed of special skill or knowledge on the matter in question, and
 - (b) the circumstances establish that a reasonable person making that statement would know that the recipient is relying upon his skill and judgment;
- (3) Reasonable reliance on the statement by its recipient;
- (4) Loss suffered as a consequence of the reliance.

[99] At paragraph 34, McLachlin J.A. quoted with approval from a published academic analysis which maintained that “mere foreseeability is insufficient to found a duty of care for negligent misrepresentation; there must...be something to establish an undertaking on the part of the person imparting the information.”

[100] **Kingu** was referred to in **Douglas J. Queen v. Cognos Incorporated** [1993] 1 S.C.R. 87 at which time McLachlin J. was a member of the Supreme Court of Canada. She concurred in the majority reasons written by Iacobucci J. who listed the required elements for a successful **Hedley Byrne** claim as follows:

- (1) *there must be a duty of care based on a "special relationship" between the representor and the representee;*
- (2) *the representation in question must be untrue, inaccurate, or misleading;*
- (3) *the representor must have acted negligently in making said misrepresentation;*
- (4) *the representee must have relied, in a reasonable manner, on said negligent misrepresentation; and*
- (5) *the reliance must have been detrimental to the representee in the sense that damages resulted.*

At page 110

[101] The Supreme Court of Canada revisited the matter of the required elements for a successful **Hedley Bryne** claim in **Hercules Management Ltd. v. Ernst and Young** (1997) 35 C.C.L.T. (2d) 115 and reconfirmed the five requirements listed above from the **Cognos Inc.** case. See the discussion in Lewis N. Klar, Q., C. **Tort Law** (3d Ed.) 2003 at pp. 204 ff, especially at p. 210:

"Both of these decisions now form the basis of Canadian negligent statement law."

[102] In my view, the plaintiffs have failed to establish that this is a case of negligent misrepresentation. The Boyles were private citizens, not in the business of selling pool slides, who had advertised to sell an item that was surplus to their needs.

[103] In **Cognos**, Iacobucci J. noted that a **Hedley Byrne** duty of care is not confined to professions such as doctors, lawyers, bankers, architects and engineers who are in the business of providing information and advice:

The question whether a duty of care with respect to representations exists depends on a number of considerations including, but not limited to, the representor's profession. While this factor may provide a good indication as to whether a "special relationship" exists between the parties, it should not be treated in all cases as a threshold requirement. There may be situations where the surrounding circumstances provide sufficient indicia of a duty of care, notwithstanding the representor's profession.

At pages 117-118

[104] The plaintiffs have failed to establish at least two of the essential requirements for a claim based on negligent

misrepresentation. There was no "*special relationship*" in the circumstances here between the Boyles and Marion Walford. The circumstances do not establish that a reasonable person making the statements, alleged by Walford to have been made by William Boyle, would know that the recipient was relying upon them.

[105] He was asked by Marion Walford about his experience with a slide in his four foot pool. He advised her, as was the fact, that a slide had been used with that pool and that neighbours had told him he was crazy to have a slide with an 18 year old son.

[106] There is nothing in the evidence to suggest that William Boyle undertook to be bound legally by any representations made, a requirement referred to in paragraph 99 above.

[107] More significantly the evidence establishes that Marion Walford did not rely on the alleged negligent misrepresentations of Boyle. She had taken pains to consult two pool supply businesses, the experts in the field, and the City's Building Department before speaking to the Boyles. After purchasing the slide she sought further reassurance from two different outlets of the defendant Pioneer Pools.

[108] Marion Walford's assertion at trial that she would not have purchased the slide if Boyle had revealed that it had been in storage for 15 years and never used in his pool, is not credible. A more reasonable inference, based on the facts that she sought assurance from the experts before seeing the newspaper ad, after seeing the ad and before attending to view the slide, and after having purchased the slide, is that she probably had made up her mind to purchase a slide even before attending at the Boyle residence. In any event, she did not rely on the alleged negligent misrepresentations of Boyle.

[109] The claim of negligent misrepresentation has not been made out. The plaintiffs' action against the Boyle defendants is, therefore, dismissed, as are any cross-claims against these defendants.

The Claims Against Jacuzzi Canada Ltd.

[110] Particulars of the negligence alleged against this defendant are as follows:

(a) it was negligent in designing the "Jacuzzi slide";

(b) it designed a "Jacuzzi slide" that was capable of causing severe injuries to the minor plaintiff, Correena Walford;

(c) it knew or ought to have known that the height of the "Jacuzzi slide" was excessive in the circumstances;

(d) it knew or ought to have known that the "Jacuzzi slide" was not suitable for a four foot deep pool but failed to warn the purchaser and subsequent purchasers and users of the dangers involved;

(e) it failed to supply such warning materials and decals or other obvious notice to the users that the "Jacuzzi slide" ought not to be used with a four foot deep pool;

(f) it failed to provide instructions on how to install the "Jacuzzi slide" in such a way as to avoid injuries.

[111] Jacuzzi Canada Ltd. never delivered a statement of defence. It was noted in default. Rule 19.06 of the **Rules of Civil Procedure** provides that "[a] plaintiff is not entitled to judgment...at trial merely because the facts alleged in the statement of claim are deemed to be admitted, unless the facts entitle the plaintiff to judgment".

[112] The pleading in paragraph (c) above is based on the plaintiffs' erroneous belief that the slide in question is 10 feet in height. In fact, its height from the deck to the top of the sliding surface is 6'3".

[113] The sole design defect established by the evidence is the overly steep angle of entry at the bottom of the slide. The

minus 14 degrees angle of entry exceeds the limit of minus 11 degrees established by the C.P.S.S., the U.S. Federal Regulations which came into effect on July 19, 1976. In my view, the evidence falls short of establishing on the balance of probabilities that the design of the water jets was defective. From Jacuzzi's written instructions, the jets are capable of adjustment to ensure a uniform water flow over the entire sliding surface.

[114] Based upon the experience of Shauwn Dunn who descended the slide twice in the seated position and feet first and that of Correena Walford who descended the slide once in that manner, the angle of entry did not cause them to contact the bottom of the pool. The minus 14 degrees angle of entry was not the cause of Correena's injuries, and I so find.

[115] In all other respects, but one, the Jacuzzi slide in question complied with the C.P.S.S. In particular, the C.P.S.S. prohibits the installation of slides of any type only in pools where the depth of water is less than three feet. As noted earlier, the 6'3" slide in question falls into the unrestricted slides category under the C.P.S.S. because it is less than 7'6" in height and was installed in a pool with a water depth in excess of four feet.

[116] The slide in question falls far short, however, of meeting the C.P.S.S. requirements for warning labels. The warning label on the slide, although in an appropriate place on the slide was smaller than specified by the C.P.S.S. and with smaller lettering than required. The C.P.S.S. requires that the labels be coloured, be permanently attached, and be tamper proof. The warning label on this pre-1976 slide appears to be monochromatic gray and extremely weathered, faded, and worn down at the edges so that some parts of the lettering are missing.

[117] Section 1207.7 of the C.P.S.S. relates to "*Intended-use instructions and signs*" and provides in paragraph (e) as follows:

(e) Retrofit. Intended-use instruction signs should be manufactured so that they can be retrofitted on slides already sold by the manufacturer.

This relates to the allegation of failure to warn and raises the question of the manufacturer's continuing duty to warn.

[118] Marion Walford testified that she did not see the warning label on the used Jacuzzi slide, neither did Correena Walford or Shawn Dunn. The warning label, particularly in its deteriorated condition was easy to miss.

[119] Jacuzzi was aware of the dangers posed by misuse of the pool slide. It attached a warning label when the slide was manufactured in the early 1970s. With the advent of the warning label requirements in the C.P.S.S. in 1976, it had a duty to update its warning labels including those on slides already sold.

[120] Once it has been established that a manufacturer had knowledge of a design defect, the court will ask whether it made an adequate effort to warn consumers of the danger. AS Robins J.A. noted in ***Buchanan v. Ortho Pharmaceutical (Canada) Ltd.***, (1986), 25 D.L.R. (4th) 658 (Ont. C.A.) at pp. 667, 672:

Once a duty to warn is recognized, it is manifest that the warning must be adequate. It should be communicated clearly and understandably in a manner calculated to inform the user of the nature of the risk and the extent of the danger; it should be in terms commensurate with the gravity of the potential hazard, and it should not be neutralized or negated by collateral efforts on the part of the manufacturer. The nature and extent of any given warning will depend on what is reasonable having regard to all the facts and circumstances relevant to the product in question.

*...
The duty to warn clearly necessitates a warning comprehensible to the average consumer which conveys the nature and extent of the danger to the mind of a reasonably prudent person.*

[121] The standard for manufacturers to meet when devising programmes to alert owners about product defects or dangers is thus very high.

[122] **Nicholson v. John Deere Ltd.** (1986), 34 D.L.R. (4th) 542 (Ont. H.C.J.), aff'd 57 D.L.R. (4th) 639 (C.A.) is a case in which a dangerous defect came to the attention of the manufacturer only some years after the product had been marketed. The Court of Appeal affirmed the trial judge's finding that the manufacturer's programme to inform lawnmower owners of a danger of arcing between the mower's battery and gasoline vapours was inadequate. The trial judge stated the following at pages 549-550:

At a minimum, however, the manufacturer in this case, assuming that full knowledge, actual or imputed, of the serious potential risk of harm reached him only some years after his product was marketed, had a duty to devise a programme that left nothing to chance. The decal on the tank could not be counted on and neither could the manual. ...With regard to the decal and the owner's manual, they also lack the specificity required of the warning which the ever-evolving law of product liability demands of manufacturers of dangerous products: See Buchanan v. Ortho Pharmaceutical (Canada) Ltd. [citation omitted]. I also add expressly what I have earlier implied, namely, that the manufacturer ought to have foreseen and anticipated that the kinds of warnings appearing both on the decal and in

the manual were not likely to reach a large number of consumers, particularly those of used units. I hold John Deere liable for negligence in knowingly manufacturing the unit following a faulty design. Alternatively the efforts to warn were deficient in that the means chosen were doomed to failure with respect to the vast majority of users.

[underlining added]

[123] In my view, Jacuzzi either knew or ought to have known of the new warning label requirements in the 1976 C.P.S.S. It had a duty to ensure that the slides manufactured prior to that date were retrofitted with the more prominent, durable and detailed warning labels. The 1976 regulations triggered a continuing duty to warn.

[124] I find negligence on the part of Jacuzzi for failure to give adequate warning to users of the slide of the extreme danger of serious injury from improper use of the slide.

[125] I must consider, nevertheless, whether or not that negligence actually caused the loss complained of.

Manufacturers are subject to a duty to warn customers and others who may be reasonably affected about any dangerous properties of their product, whether they are "inherent dangers" or "dangers attendant on the use"

...

A consumer is under a corresponding duty to read and heed warnings and instructions, or bear the entire consequences of injury, or have the recovery reduced. In other words, if the consumer did not read the warning, or if upon reading it, did not heed it, it cannot be said that the failure to warn caused the accident and, hence, the action must fail on this basis. The absence of the warning must be the cause of the accident.

Allen M. Linden: **Canadian Tort Law** (Seventh Edition)
at p. 587

[126] Pool slides cannot be said to be inherently dangerous. If properly used in a four-foot deep pool, as demonstrated by the evidence in this case, they can be used in safety. Moreover, as stated by Mr. Raftery, if used in conjunction with a much deeper pool the risk of the injury experienced in this case would be eliminated because its use in conjunction with the deeper pool incorporates a meaningful safety factor.

[127] In this case, Correena had been made aware of the danger of diving into the pool even before the slide was installed. Her parents had enforced the “no diving” rule and she had complied with it in the past.

[128] Shortly before the installation of the slide she had been told that the only way to descend on the slide was in the seated position with the feet forward. This was the first

warning listed on the label already affixed to the slide in question.

[129] Although neither Marion Walford nor Correena Walford saw that label prior to the accident, it cannot be said in the circumstances that the inadequacy of the characteristics of the label when measured against the 1976 CPSS requirements was the cause of the accident. The cause of the accident was Correena's failure to heed the warning received by her from Marion Walford.

[130] In this case, the absence of a proper warning label on the slide was not the cause of the accident. Accordingly, the claims against the defendant Jacuzzi Canada Ltd. must fail.

The Claims Against Esther Williams Pools Canada Inc.

[131] Negligence is alleged against Esther Williams Pools in that:

(a) it failed to supply written materials including method of installing a pool slide which induced the Plaintiffs into believing that pool slides in general could safely be used with the said pool.

[132] Paragraphs 54 to 59 above outline some of the testimony given by Frederick Schall on his examination for discovery. He pointed out that the **Mardi Gras Installation**

Instructions, which was the only Esther Williams publication received by Marion Walford when she purchased the used pool, refer to both flat-bottomed and hopper-end variations of the pool.

[133] The sole basis for the complaint against this defendant is that the cover page of the **Installation Instructions** depicts the Mardi Gras pool with a slide. The slide in the diagram is mounted at the end of the pool opposite from deck area where the Walfords mounted their slide. Even a casual perusal of the contents of the **Installation Instructions** booklet reveals that the hopper version has an area with 7'6" of water at the end where the slide is shown in the cover illustration. As stated by Mr. Schall, a slide would be appropriate for a deep-end or a hopper-end pool.

[134] Marion Walford testified that seeing the illustration on the cover of the **Installation Instructions** led her to investigate the matter of installing a slide. Asked on cross-examination what effect that illustration had on her, she replied that she was led to believe that a slide could be used with a four foot pool, but that she was not totally convinced at that point and wanted to be assured. She subsequently contacted for advice the various sources already referred to.

[135] Mr. Raftery describes the illustration on the cover of the Installation Instructions as an "*allurement*". He was critical as well of the content of the ***Esther Williams Care and Maintenance Manual***, a publication never seen by Marion Walford prior to purchasing the slide, because it refers to slides in the section dealing with winterization of pools. It describes when removal of the slide is necessary and the step-by-step procedure to be followed.

[136] Mr. Schall advised that in his long experience with Esther Williams Pools, the company had never been notified of a problem associated with the use of a slide with the Mardi Gras model. He acknowledged that his company had never done any testing to determine the advisability of using a slide with these pools, and the installation and maintenance manuals contained no written warnings respecting the use of slides. The ***Installation Instructions*** contains a note prominently underlined at page 12 that:

Diving equipment of any type is not permitted to be installed for use with this pool!

[137] Mr. Schall stated that purchasers should refer to the instructions which come with the slide in order to determine whether or not it is safe to use it with a particular pool.

[138] In my view the claims against Esther Williams Pools have not been made out by the plaintiffs. Although the illustration referred to prompted Marion Walford to believe that a slide might be used safely with a four foot pool, she was not convinced by it and she investigated further.

[139] The evidence establishes that the use of a slide with a four foot above-ground pool is consistent with the C.P.S.S., the only applicable legal standard. The evidence establishes, as well, that the combination of the slide in question and the four foot Mardi Gras pool was safe so long as the warnings provided, namely, to slide in the seated position and enter the water feet first, were observed.

[140] In my view there is no causal connection between the illustration on the cover of the **Mardi Gras Pool Installation Instructions** and the injuries suffered by Correena Walford. The claims against Esther Williams Pools and any cross-claims against this defendant are, accordingly, dismissed.

HISTORY OF THIS ACTION AND THE CLAIMS AGAINST OTHER DEFENDANTS

[141] The defendants Jacuzzi Inc. and USI Canada Inc. filed statements of defence in which each denied any involvement in the design, engineering, manufacture or distribution of the Jacuzzi slide in question. These defendants succeeded in a motion for summary judgment whereby the plaintiffs' claims and the cross claims of Pioneer, Esther Williams and the Boyles as against Jacuzzi Inc. and USI Canada Inc. were dismissed.

[142] At the opening of this trial on January 17, 2005, the court was advised that the defendant Esther Williams and the plaintiffs had entered into a settlement agreement known as a Pierringer Agreement. According to the terms of that agreement, the plaintiffs agree that the liability, if any, of Esther Williams is limited to its several liability. The plaintiffs agree, as well, that they will not seek to recover from the other defendants (the non-settling defendants) a dollar amount greater than the non-settling defendants' degree of liability. If the court finds Esther Williams liable to the plaintiffs for damages, the agreement specifies both a maximum and a minimum amount payable by Esther Williams. These amounts were not disclosed; instead, they are contained in an unedited version of the agreement deposited with the court in a sealed envelope.

[143] Paragraph 7 of the agreement restricts the plaintiffs' claims against the non-settling defendants to the several liability, if any, of each of them, the intent being that the non-settling defendants cannot be jointly liable with Esther Williams. The plaintiffs agree to indemnify Esther Williams and hold it harmless from any cross-claims of the non-settling defendants.

[144] By the terms of paragraph 8, the action is dismissed as against Esther Williams, on consent and without costs.

[145] Mr. Percival submitted that the effect of this agreement is to force the trial of this action. He raised the issue of the propriety of entering into such an agreement inasmuch as it purports to nullify the crossclaims of the non-settling defendants against the settling defendant. Ordinarily the dismissal of an action against one of several defendants with the consents of the plaintiff and that defendant only would not be permitted where there are crossclaims against that defendant.

[146] In view of the findings in this case that none of the Boyles, Pioneer or Esther Williams bears any responsibility for

the plaintiffs' damages, there is no need for me to address the issue raised concerning the Pierringer Agreement.

[147] By Notice of Discontinuance dated January 14, 2005, the plaintiffs discontinued their action as against Clarence Walford and Marion Walford as defendants.

[148] Finally, the court was advised that the defendant Jacuzzi Canada Ltd., which has not defended this action, is a defunct corporation which was dissolved under the ***Ontario Business Corporations Act*** in 1989.

THE CONDUCT OF THE PLAINTIFFS

[149] As stated by Mr. Raftery in his testimony at trial, it would be less dangerous to dive into a four-foot deep pool from the level of the deck than it would be to enter head first after descending the slide. He estimated that a speed of 20 kilometers per hour is attained by descending on the slide, a factor that increases significantly the probability of severe injury by striking the bottom of the pool.

[150] Marion Walford and Clarence Walford were aware of the danger of diving into their pool. They enforced the no diving

rule by requiring that anyone using the pool enter and leave it only by using the pool's ladder. A "*No Diving*" sign was posted in a window facing the pool.

[151] Despite not having seen the warning label on the slide's transom, Marion Walford gave the proper common sense warning to all of her children, including Correena - to go down the slide on one's bottom, feet first. As acknowledged by Mr. Raftery, if Correena had followed that instruction she would not have been injured.

[152] I reject as untrue Clarence Walford's testimony that he instructed Correena to descend the slide either seated and feet first or on her knees. Correena denied that her father had ever instructed her to descend the slide on her knees. Clarence Walford had no personal experience on water slides, yet he stated on cross-examination that he expected that by descending on one's knees with your weight back on your behind which is resting on your feet, one's feet or knees would enter the water first.

[153] Clarence Walford was not outside when the accident happened. Marion Walford was on the pool deck. As was the custom even before the slide was installed, either she or her husband

would be present when the pool was in use to monitor and to enforce the rules. She observed Correena's first trip down the slide. When Correena descended the slide the second time, Marion Walford was distracted by a neighbour, Mr. Kershaw, who spoke to her. She failed to observe that Correena was descending on her knees.

[154] The testimony of Shauwn Dunn and Correena Walford suggests that Marion Walford was distracted throughout the interval during which they used the slide, by conversing with Judy Dunn.

[155] In my view, Marion Walford did everything that could reasonably be expected of her to ensure the safety of those using the slide. Just as the various defendants cannot be said to have caused this accident, it cannot be attributed to any failure of duty on the part of Marion Walford. She was present to monitor the young people to ensure that they observed safe practices while using the pool. She observed Correena descend the slide as instructed by entering the water feet first. She yielded to the natural human tendency to respond when a neighbour at an adjoining residence called out to her. Through no fault of her own, she was distracted and failed to observe Correena's second trip down the slide.

[156] I am compelled to conclude, regrettably, that it was Correena's uncharacteristic failure to heed the rules for the safe use of the slide which led to her collision with the bottom of the pool.

[157] Correena acknowledged that her mother had given clear instructions that she was to descend the slide in a seated position in order to enter the water feet first. Instead, she descended the slide on her knees, with her hands on her knees and crouched forward, knowing that she would enter the water head first. In that position her arms and hands would not be in front of her to help protect her face or head from making violent contact with the bottom of the pool.

[158] Notwithstanding the findings on the issue of liability, I must address the matter of the damages suffered.

DAMAGES

[159] Counsel made very brief submissions on the matter of the assessment of damages. Written reports on future care costs commissioned by the parties were filed on consent. The authors of these reports did not testify. A single report dealing with

future loss of income was filed as Exhibit 6A on behalf of Correena Walford. In the absence of viva voce testimony and cross-examination, the court is left with the task of evaluating the written analyses filed.

[160] Several heads of damages have been agreed upon; however the parties are at odds over the issues of life expectancy for Correena, whether or not she should live independently or receive institutional and less costly care, and whether or not any of the O.H.I.P. claims are duplicated in other elements of the damages claims.

[161] Single page damages summaries were submitted on behalf of the plaintiffs, on behalf of Pioneer, and on behalf of the Boyles. These are appended to these reasons as Appendices B, C, and D. respectively.

GENERAL DAMAGES

[162] I assess non-pecuniary general damages as follows:

<i>Correena</i>	\$ 302,000.00
<i>Marion (FLA)</i>	50,000.00
<i>Clarence Sr. (FLA)</i>	25,000.00
<i>Shannell (FLA)</i>	10,000.00
<i>Clarence Jr. (FLA)</i>	<u>10,000.00</u>

Total \$ 397,000.00

[163] Only Shannell and Clarence Jr., testified at trial. The only evidence about Correena's relationship with her other siblings on whose behalf **Family Law Act** claims are advanced, suggests that there has been no loss of care, guidance and companionship entitling them to an award of damages and I so find.

AGREED (UNCONTESTED) ITEMS

[164]

Marion Walford – Attendant care and other services for Correena Walford	\$ 167,170.00
Out-of-pocket expenses (Exhibit 4)	\$ 66,444.43
Unreimbursed medical expenses (Exhibit 18)	\$ 19,538.35

HOME IMPROVEMENT EXPENSES

[165] This claim is documented in Exhibit 19 which shows a total of \$89,448.61. The plaintiffs acknowledge that this total should be reduced to \$71,248.00, the amount currently claimed.

[166] The defendants submit that this amount should be reduced further to take into account donations received by the plaintiffs for home improvements, thus avoiding double recovery.

The defendants' position is that the sum of \$52,248.00 should be allowed for this item.

[167] Marion Walford testified that the original total of \$89,448.61 in Exhibit 19 includes the sum of \$18,600.00 received as a donation from Rotary International and other donors. Deducting the amount of those donations from the total in Exhibit 19 leaves a total of \$65,848.61.

[168] The plaintiffs' claim for this item in the appended damages summary is a reduced amount of \$71,248.00. it is not clear how the new total was calculated. It appears, however, that the \$18,600.00 for donations was not deducted.

[169] I would assess this item, therefore, as submitted by the defendants at \$52,648.00 (\$71,248.00 - \$18,600.00).

LOSS OF FUTURE EARNINGS

[170] Loss of future earnings has been computed in the report by R. Andrew James, C.A. (Exhibit 6A), based upon a potential employment income of \$38,000.00 per year. The estimated net present value of the projected employment income to Correena's 65th birthday is determined at page 2 of that report to be \$828,792.

[171] Contingencies of mortality, participation and unemployment in the workforce were used to reduce the projected employment income.

[172] The plaintiff Correena Walford claims \$800,000.00 for this head of damages. Pioneer and the Boyles submit that this amount should be reduced to \$400,000.00 to take into account normal contingencies such as marriage and child bearing.

[173] A fifty percent reduction for such contingencies would be extraordinary and unwarranted. In my view, a twenty percent reduction would be more appropriate.

[174] I assess damages for loss of future earnings at \$640,000.00.

LIFE EXPECTANCY

[175] Life expectancy plays a pivotal role in the assessment of the cost of Correena's future care needs. The opinion of Marijane Doyle M.D., paediatrician, who has cared for Correena since she was five years old, is that Correena's life expectancy is the same as that of any woman her age. Dr. Doyle states at page 2 of her letter of May 12, 2004 (Exhibit 6, Tab 3) that:

While in the past, quadriplegics often succumbed with complications of infection (pneumonia, urinary tract infections with renal failure, cellulitis and systemic

sepsis), that is not true with use of modern potent antibiotics and good daily physical therapy.

[176] The present value of future care costs was calculated by the plaintiffs on the basis that Correena would have the normal life expectancy of a female of 23 years of age, namely, approximately 59 years.

[177] The defendants rely on the opinion of Dr. A.I.M. Armstrong, family practitioner, whose expertise includes 28 years of working in the field of life insurance medicine “*assessing the mortality in insurance applicants*”. He reviewed Correena Walford’s medical records. In his report of December 31, 2004 (Exhibit 6, Tab 10) he states the following at page 11:

It is my opinion that this woman who is now 24 years old (Date of Birth 2nd of October 1980) has a Life Expectancy of 25 to 27 years. This is compared to a normal 24 year old woman in the Province of Ontario, who would be expected to live a further 57.91 years (Complete life Tables - 7B, Ontario, 1995 - 1997: Females).

[178] Dr. Armstrong’s report reviews seven factors affecting life expectancy in this case.

[179] In my view, the estimates in the opinion of Dr. Doyle and Dr. Armstrong represent the opposite ends of the spectrum of possibilities ranging from the thoroughly optimistic to the unduly pessimistic.

[180] Based upon his qualifications and experience, expertise seems to favour the view expressed by Dr. Armstrong. Correena, however, has managed to stay relatively healthy and to function at a level which permits her to pursue a community college education and to travel to and from school on occasion without any assistance.

[181] A more appropriate life expectancy factor for calculating future care costs would be 42 years and I so find.

FUTURE CARE COSTS

[182] The plaintiffs claim future care costs in the amount of \$8,843,000.00 being the present value of those costs based on the reports of Terry Pearce (Exhibit 6, Tab 4), Dr. Doyle (Exhibit 6, Tab 3) and R. Andrew James, C.A. (Exhibit 6, Tab 5). This calculation is based on a life expectancy of 59 years and presupposes that Correena will live in her own house with 24 hour care to meet all of her needs. In addition, the plaintiffs advance a claim on behalf of O.H.I.P. for \$2,500,893.00 (Exhibit 13) based on life expectancy of 27 years and on the assumption that Correena will require institutional care for the last nine

years of her life expectancy after her mother reaches the age of 60.

[183] The defendants take the position that the appropriate award for future care costs, including future O.H.I.P., is \$3,035,000.00 based upon a life expectancy of 26 years. They rely on the reports of Dr. Armstrong (Exhibit 6, Tab 10), Paul Colangelo (Exhibit 6, Tab 9) and of Quantum Rehabilitation Services (Exhibit 6, Tabs 7 and 8).

[184] As with the issue of liability, the issue of future care costs is a major point of contention. Is home care the appropriate standard of care for Correena Walford as contemplated by the Terry Pearce report, or is institutional care the appropriate standard as reflected in the reports relied upon by the defendants? The choice of the type of care has significant cost implications.

[185] I agree, with respect, with the observation made by Jewers J., in **Lusignon (Litigation Guardian of) v. Concordia Hospital** [1979] M.J. No. 197 (Man. Q.B.) that *"there is no legal requirement that in these cases home care is mandated and each case must turn on its own evidence and facts"*.

[186] The limitation on what can be claimed and on what ought to be awarded is discussed in the Supreme Court of Canada

judgment in **Andrews et al. v. Grand & Toy Alberta Ltd. et al.**

(1978) 83 D.L.R. (3d) 452 at p. 462:

In theory a claim for the cost of future care is a pecuniary claim for the amount which may reasonably be expected to be expended in putting the injured party in the position he would have been if he had not sustained the injury.

Obviously, a plaintiff who has been gravely and permanently impaired can never be put in the position he would have been in if the tort had not been committed. To this extent, restitutio in integrum is not possible. Money is a barren substitute for health and personal happiness, but to the extent, within reason, that money can be used to sustain or improve the mental or physical health of the injured person it may properly form part of the claim.

*...
There is a duty to be reasonable. There cannot be "complete" or "perfect" compensation. An award must be moderate and fair to both parties. Clearly, compensation must not be determined on the basis of sympathy, or compassion for the plight of the injured person. What is being sought is compensation, not retribution.*

[Underlining added]

[187] The matter must not be viewed, however, solely from the point of view of the defendants and of the expense to them.

This point is made at page 463 in **Andrews**:

An award must be fair to both parties but the ability of the defendant to pay has never been regarded as a relevant consideration in the assessment of damages

at common law. The focus should be on the injuries of the innocent party. Fairness to the other party is achieved by assuring that the claims raised against him are legitimate and justifiable.

[188] In this case, Correena has lived in the family residence since her release from hospital. She has been cared for there largely through the efforts of Marion Walford, her mother. The family home had been extensively renovated to accommodate Correena. The family has subsequently purchased a larger house to better accommodate her needs and the needs of the family.

[189] In my view, fairness dictates that the assessment of future care costs be based on Correena being permitted to live outside an institutional setting for as long as possible. In that respect the Terry Pearce assessment as to how to accommodate Correena's needs is preferable to that advanced by the defendants in most respects, and I so find.

[190] An adjustment should be made in the cost claimed for the purchase, operation, maintenance and replacement of the van for Correena's personal transportation. The corresponding costs of owning and operating an ordinary passenger car should be deducted on the basis that these would have been costs incurred by Correena in any event.

[191] Subject to those observations concerning the life expectancy factor, the nature of the residential setting for Correena, and the claim for the cost of the van for transportation, the approach submitted by the plaintiffs for calculating future care costs is preferable and I so find.

[192] I agree with the defendants' submission that the future O.H.I.P. costs are subsumed, for the most part, in the general claim for future care costs. Sandra Randall, a representative of O.H.I.P. who testified at trial, confirmed that costs of physiotherapy services, occupational therapy, and nursing care in the O.H.I.P. future care cost calculation (Exhibit 13) duplicates the calculations for private care.

[193] Ms. Randall agreed as well that the \$1,874,187.44 projected as the cost of institutional care would not be needed if Correena was found to be entitled to 24 hours per day nursing care in a private setting.

[194] The amount of an appropriate award for future care costs should be calculated based upon the above findings.

RESULT

[195] This action by the plaintiffs is dismissed as against Pioneer Family Pools (Hamilton) Inc., W.H. Boyle, Keven Boyle,

Jacuzzi Canada Ltd., and Esther Williams Pools of Canada Inc. It follows that all crossclaims are dismissed as well.

COSTS

[196] If the parties are unable to agree on the matter of the costs of this action, they may submit brief written submissions within the next 60 days.

CAVARZAN J.

Released: April 8, 2005

(i)

APPENDIX A

206 Q. Did you say anything to Sean or your mother before you went down the slide the second time?

A. Not that I recall.

207 Q. When you got to the top of the ladder, what did you do with respect to your body?

A. I put my knees on top of the slide and crouched down.

208 Q. So you put your knees, so that your knees and ankles would be in contact with the blue part of the slide, is that what you're saying?

A. Yes.

209 Q. And was it your intention then at the top to go down on your knees?

A. Yes.

210 Q. Thank you. You told me that on earlier occasions at Canada's Wonderland and Wet'n Wild and at Prudhommes, that you had gone down on your knees, going down on your knees how do you enter the water? What parts of your body enter the water first?

(ii)

MR. SCARFONE; How would she know that if she never did it.

211 **MR. PERCIVAL;** I'm talking about the year before, she said she went down on her knees and I said, how do you enter the water when you go down on your knees?

A. Head first.

212 Q. Okay. So you knew that --

A. Hmmhmm.

213 Q. -- from the year before?

A. Hmmhmm.

214 Q. Thank you. Is your answer, yes, to that?

A. Yes.

215 Q. And on the previous occasions the year before when you would enter the water, would you be entering the water in a dive or would you -- is that what you did on those previous occasions at Wet'n Wild and at Prudhommes?

A. Yes.

216 Q. With your hands in front of you?

(iii)

A. No, I had my hands on my knees.

217 Q. Okay. So you would be entering the water with your hands on your knees but it would be head first --

A. Yeah.

218 Q. -- into the water, is that right?

A. Yeah.

219 Q. Thank you. So on this occasion of your second dive, it was your intention to go down on your knees with your hands on your knees and enter the water head first?

A. Yes.

220 Q. And did you in fact do that?

A. Yes.

221 Q. And when you went down the water, down the slide, and just before you reached the water, were you [sic] hands on your knees and were you sliding on your knees and lower parts of your leg?

A. Yes.

(iv)

222 Q. And were you at right angles to your legs? In other words, your legs were in front of you and your body was at right angles to them?

A. No, I was crouched over.

223 Q. Crouched over?

A. Yes.

224 Q. When you say, crouched over, you were crouched closer to your knees?

A. Yes.

225 Q. And was that the same thing that you had done on the previous occasions the year before?

A. Yes.

226 Q. On the previous occasions the year before, how deep was the water --

A. I don't remember.

227 Q. -- that you went into?

A. I don't remember.

(v)

228 Q. Did you ever touch the bottom when you entered?

A. Not that I remember.

229 Q. And so did everything go as you had planned then to the time you reached the end of the slide?

A. Yes.

230 Q. Nothing changed?

A. No.

231 Q. And did you go down any faster or slower or the same speed as the previous slide?

A. I don't remember.

APPENDIX B

Damages

Correena	\$ 302,000 as per Trilogy
Mary FLA	\$ 100,000
Mary Attendant Care	\$ 167,170 as per Exhibit
Clarence FLA	\$ 50,000
Pecuniary Expenses	\$ 71,248 as per Exhibit
Medical	\$ 19,538.35
Siblings	\$ 100,000
Future Lost Income	\$ 800,000 as per Andy James
Future Care	\$ 8,843,000 as per Pearce Doyle and James
OHIP	\$ 2,500,893.20 as per Schedule

APPENDIX C

DAMAGES ASSESSMENT

PJI factor - July 12th, 1996 to February 12th, 2005 (8 years, seven months)

PJI rate: 3.3% at July 11th, 1997 (date of issue)

PJI factor: 28.32%

Non Pecuniary General Damages

Correena	\$300,000.00	
Marion	\$ 50,000.00	
Clarence Sr.	\$ 25,000.00	
Shannel	\$ 10,000.00	
Clarence Jr.	\$ 10,000.00	
Total	\$395,000.00	\$ 395,000.00

Special Damages

OHIP (Ex.13)	\$ 380,129.73
Home improvements (Ex. 19)	\$ 52,248.61
Medical Expenses (Ex. 18)	\$ 19,538.35
Marion-Quantum meruit past attendant care (Ex. 17)	\$ 167,160.00

Out of Pocket Expenses (Ex. 4) \$ 66,444.43

Loss of Future Earnings
(Because of contingencies, marriage, child bearing consideration) \$ 400,000.00

Future Care Costs

Including future OHIP \$3,035,000.00

TOTAL \$4,515,521.00

APPENDIX D

PJI factor - July 12/96 to February 12/05 (8 years, 7 months)
PJI rate: 3.3% at July 11/97 (date of issue)
PJI factor: 28.32%

Non-Pecuniary General Damages

Correena	\$300,000
Marion	50,000
Clarence Sr.	25,000
Shannel	10,000
Clarence	<u>10,000</u>

Total:	\$395,000	\$ 395,000.00
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Special Damages:

OHIP (Ex.13)	\$ 380,129.73
Home improvements (Ex. 19)	52,248.61
Medical expenses (Ex. 18)	19,538.35
Marion-Quantum meruit past attendant care (Ex.17)	167,160.00

Out of pocket expenses (Ex.4)	\$ 66,444.43
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Loss of Future Earnings (because of contingencies, marriage, child bearing consideration)	\$ 400,000.00
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Future care costs including future OHIP	\$ 3,035,000.00
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TOTAL	\$ 4,515,521.00
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OHIP subsumed in future care analysis of
quantum - see present value calculation by Colangelo

COURT FILE NO.: 1722/97
DATE: 20050408

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

JUDY DUNN as Litigation Guardian
for CORREENA WALFORD, SHERRETT
WALFORD, ROCKELLE WALFORD,
MELLANIE WALFORD, CLARENCE WALFORD
and SHANNELL WALFORD and CLARENCE
WALFORD, MARION WALFORD, TREVOR
WALFORD

Plaintiffs

- and -

JACUZZI CANADA LTD., JACUZZI INC.,
PIONEER FAMILY POOLS (HAMILTON)
INC., ESTHER WILLIAMS POOLS OF
CANADA INC., W.H. BOYLE, KEVEN
BOYLE, CLARENCE WALFORD and MARION
WALFORD and USI CANADA INC.

Defendants

REASONS FOR JUDGMENT

CAVARZAN J.

JC/sh

Released: April 8, 2005